



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing three judgments on Tuesday 11 September 2018 and three judgments and / or decisions on Thursday 13 September 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 11 September 2018

Revision

[Mindek v. Croatia \(application no. 6169/13\)](#)

The case concerns a request for revision of a 2016 judgment by the European Court of Human Rights with regard to the forced sale of a house in order to pay a debt.

The applicant, Anton Mindek, is a Croatian national who was born in 1932. Between 2003 and 2007 he lost criminal and civil proceedings for defamation following the publication of two articles in a daily newspaper accusing his neighbour of stealing his house and orchard. He was ordered to pay damages and costs to his neighbour. He did not pay the sums on time and in 2007 the courts instituted enforcement proceedings, ordering the seizure and sale of his house. In 2011 the courts officially awarded the property to the neighbour. In the meantime, Mr Mindek had paid the debt in full. However, the courts rejected his request to discontinue the enforcement proceedings.

In its [judgment](#) of 30 August 2016, the Court held that there had been a violation of Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human rights because the domestic courts had decided to sell Mr Mindek's share in the house and the surrounding land even after he had paid his debt in full.

On 10 February 2017 the Government informed the European Court that they had learned that Mr Mindek and his wife had not been living in the house at issue. They argue that this could have had a decisive influence on the Court's original judgment, which had been based on the assumption that Mr Mindek was facing eviction because of the judicial sale of his share in the house. The Croatian Government accordingly requested revision of the judgment within the meaning of Rule 80 of the Rules of Court.

The Court will examine the Government's request for revision in its judgment of 11 September 2018.

[B. Tagliaferro & Sons Limited and Coleiro Brothers Limited v. Malta \(nos. 75225/13 and 77311/13\)](#)

The applicant companies, B. Tagliaferro & Sons Limited and Coleiro Brothers Limited, are two companies registered in Malta in 1966.

The case concerns their complaint that their property was expropriated for public use, but that 25 years later the project has still not been carried out and they have never received compensation for the property.

In 1993 the Government expropriated three properties owned by the applicant companies in Valletta with a view to using them as government offices, in particular the Office of the Attorney General. The project was delayed because the premises were occupied by squatters and in the meantime the relevant building permits expired. In 2007 the premises were vacated and the

Government took over possession. In 2009 the Government issued another declaration for the expropriation of the properties. However, the relevant building permits not having been issued, another building in Valletta has most recently been identified and is being refurbished for use as the Office of the Attorney General. The applicants' properties remain designated for public use.

The applicant companies instituted constitutional redress proceedings and ultimately in 2013 the Constitutional Court awarded them 15,000 euros each for non-pecuniary damage for a violation of their property rights under the European Convention. They were told that if they wanted to seek material damage, they had to bring separate proceedings before the Land Arbitration Board.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention, the applicant companies complain that their property was expropriated without the public interest requirement ever having been satisfied and that they have still not been paid compensation for the properties. Further relying on Article 13 (right to an effective remedy) in conjunction with Article 1 of Protocol No. 1, they also allege that the compensation they were awarded by the Constitutional Court was inadequate and that constitutional redress proceedings were not an effective remedy for the protection of their property rights.

[Kasat v. Turkey \(no. 61541/09\)](#)

The applicant, Adem Kasat, is a Turkish national, who was born in 1984 and lives in Mersin. The case concerns his complaint about conditions of military life and an alleged lack of impartiality on the part of the Military Administrative High Court, which dismissed his compensation claim.

In October 2003 Mr Kasat underwent the requisite routine medical examination and was declared fit for military service. In November 2003 he joined the military training unit of mountain commandos at Isparta and was later assigned to the commando brigade of Kayseri.

While he was serving in the army he complained of back pain. The doctors diagnosed scoliosis and low back pain. Mr Kasat was sent to hospital for medical treatment and was then put on sick leave. After undergoing an operation, he was ultimately exempted from military service.

In November 2006 Mr Kasat applied to the Defence Ministry for compensation in respect of pecuniary and non-pecuniary damage, but he received no reply. Mr Kasat then lodged his claim with the Military Administrative High Court, which appointed a committee of experts.

In January 2009, on the basis of the reports, the High Court found that there was nothing in the file to suggest that Mr Kasat's condition had been related to his military service. It concluded that there had been no negligence or fault attributable to the administration as regards the diagnosis and medical treatment and thus dismissed the compensation claim. In April 2009 it also dismissed Mr Kasat's application to rectify the judgment.

Relying on Article 2 (right to life), the applicant complains of a violation of his right to respect for his physical integrity. He argues that the conditions in which he carried out his military service contributed to the worsening of his back pain.

Thursday 13 September 2018

[Big Brother Watch and Others v. the United Kingdom \(nos. 58170/13, 62322/14, and 24960/15\)](#)

The 16 applicants are organisations and individuals who are either journalists or are active in campaigning on civil liberties issues. The applications are Big Brother Watch and Others v. the United Kingdom (no. 58170/13); Bureau of Investigative Journalism and Alice Ross v. the United Kingdom (no. 62322/14); and 10 Human Rights Organisations and Others v. the United Kingdom (no. 24960/15).

The applications were lodged after Edward Snowden, a former US National Security Agency contractor, revealed the existence of surveillance and intelligence sharing programmes operated by the intelligence services of the United States and the United Kingdom.

The applicants believe that owing to the nature of their activities their electronic communications and/or communications data were likely to have been intercepted or obtained by the UK intelligence services.

Relying on Article 8 (right to respect for private and family life and correspondence), all the applicants complain about the regimes for the bulk interception of communications, intelligence sharing and for the acquisition of data from communications service providers.

The second and third applications also raise complaints under Article 10 (freedom of expression) related to their work, respectively, as journalists and non-governmental organisations.

The third application relies in addition on Article 6 (right to a fair trial) in relation to the domestic procedure to challenge secret surveillance decisions and on Article 14 (prohibition of discrimination), combined with Articles 8 and 10, alleging the regime for the bulk interception of communications discriminated against people outside the United Kingdom, whose communications were more likely to be intercepted and, if intercepted, selected for examination.

A public [hearing](#) was held on the case in November 2017.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Ahkim v. Belgium (no. 27399/17)

Basra v. Belgium (no. 47232/17)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.